STATE OF DELAWARE
DEPARTMENT OF TECHNOLOGY AND INFORMATION
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Policy Title:	Software Policy	

Synopsis:	This policy stipulates that software purchased and/or obtained for use on State production systems must be in final/gold and/or General Availability (GA) release status and it must meet certain criteria.
Authority:	Title 29 Chapter 90C Delaware Code, §9004C – General Powers, duties and functions of DTI "2) Create, implement and enforce statewide and agency technology solutions, policies, standards and guidelines, including as recommended by the CIO"
Applicability:	This Policy is applicable to all users of the State of Delaware communications and computing resources. DTI is an Executive Branch Agency and has no authority over the customers in Legislative and Judicial Branches, as well as Local Education Agencies, and other Federal and Local Government entities that use these resources. However, all users, including these entities, must agree to abide by all policies, standards promulgated by DTI as a condition of access and continued use of these resources.
Effective:	8/11/2008
Reviewed:	6/23/2023
Approved By:	Chief Information Officer
Sponsor:	Chief Technology Officer

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I. Policy

EXECUTIVE SUMMARY
Properly maintaining State systems requires the technical staff to use software at the General Availability (GA) release status level. Use of software that is not GA release can directly affect the technical staff's ability to support, maintain, patch, and secure systems that support the State's business, goals, and objectives.

This action also complies with copyright laws[1] (17 USC Sec. 105, 205; 36 USC Sec. 2114; 40 USC Sec. 11101) involving the procurement, installation, distribution, and use of computer software. It also complies with sections in the State of Delaware Information Security Policy (DISP), which include Segregation of Production and Test, Change Control, System Documentation, Software Copyright (Licensure), Patch Management, Software Development and Intellectual Property, Outsourced Software Development, and Procurement Security. See the State of Delaware Information Security Policy.

PURPOSE
The purpose of this policy is to require the installation and use of General Availability (GA) software on State systems. This action will support the availability, reliability, and security of the State's production systems.

[1] http://uscode.house.gov/search/criteria.shtml

Only the official certified release from the licensor, also known as General Availability (GA) release, software shall be used/installed onto production systems. Unlabeled copies or duplicate software should not be used unless its origin can be directly linked to officially certified GA release from the licensor.

Compliance with this policy is mandatory for all State production systems.

This policy will be revised and reviewed every three years. However, the State is obligated to comply with new laws or regulations coming into effect between revisions.

POLICY STATEMENT

1. All software that supports State production systems must be Generally Available (GA) release software. Technical staff should verify this from the installation media or licensor's web site and should never install software from media that contains handwritten information on the label, without verifying the content with the officially certified GA release from the licensor.
2. Software must be controlled and maintained properly by authorized personnel to ensure that systems continue to operate properly.
3. Software maintenance standards, procedures, and conventions must be established to help ensure the integrity of data and operating effectiveness. They also help control access to system resources.
4. All software that supports State production systems must controlled by a process that monitors and applies patches to ensure proper currency. State software should never fall outside of the licensor's published supported life cycle.
   Agencies and DTI are to continue to monitor the proper product lifecycles and plan hardware and software deployments accordingly. Minor releases are to be deployed on a tactical, as-needed basis; major releases are to be deployed only after extensive application and integration testing has been performed.
5. To maintain availability and reliability of provided Business Services agreed upon maintenance windows must be predetermined by Agency or DTI.

6. All software that supports State production systems must address three specific concerns: proprietary rights indemnification, validation of the source and supportability. The definitions for these concerns are detailed in the definitions section.
    a. For open source software under contract, proprietary rights indemnification is required.
    b. For open source software not under contract, the need for proprietary rights indemnification should be based on risk.
    c. When proprietary rights indemnification is not provided by the contractor or a third party, proprietary rights indemnification risk is borne by the State.
    d. If support of open source software is not contracted, the State agency or branch of government assumes responsibility for support.
7. Alpha, Beta or Release Candidate software, if installed, must be in a development or test environment only, and DTI must give authority to install and/or connect systems using that software to the State Network. The user of Alpha, Beta or Release Candidate software must understand that it is not production-ready software and may fail unexpectedly. Agencies testing Alpha, Beta or Release Candidate software should expect only limited support from DTI or the software vendor.
8. Non-authorized end users must not install software on computing devices. In addition, tools should be deployed that govern an end-user's ability to install software on end user computing devices. The type of computers included are:
    a. Office desktop
    b. Agency provided laptop
    c. Home computers that are provided by an Agency
    d. Agency provided tablets

IMPLEMENTATION RESPONSIBILITY

DTI and/or the organization's technical staff will implement this policy during the course of normal business activities, including business case review, architectural review, project execution and the design, development, or support of systems. Formal change control procedures should be used to ensure that only authorized changes are made to software.

ENFORCEMENT and WAIVER

DTI will enforce this policy during the course of normal business activities, including business case and architectural review of proposed projects and during the design, development, or support of systems. This policy may also be enforced by others during the course of their normal business activities, including audits, design reviews, and automated tools such as SCCM. Audits should be conducted on a monthly basis to ensure compliance.

If there is an immediate need to run non-Generally Available (GA) release software on a State production system for a feature fix, security vulnerability, or patch/work-around then the organization should follow its normal system change control processes and then document the installation with a waiver request. That waiver will be issued for a limited time, and the organization then has a responsibility to follow up with the licensor and obtain a Generally Available (GA) release software version that contains those fixes.

If there is ambiguity or confusion regarding any part of this policy, contact the point of contact defined in the header of this policy.

II. Definitions

Alpha – Software that is in the early part of the development life cycle and should never be used in any production environment.

Beta – Software that has passed the Alpha stage and is more refined. Beta software is often released to get core customers a look at new or enhanced functions. This

software is still a work in progress and not to be used in production environments.

Business Services – A customer, partner, or user-facing group of applications that are supported by an IT infrastructure. This infrastructure; middleware, security, storage, networks and other come together to enable a comprehensive, end-to-end business process, transaction or exchange of information.

General Availability (GA) – Software that is considered to be the final product. This software is considered to be very stable and relatively bug-free. This is also the version that patches and/or security fixes are tested against for compatibility.

Gold – Software that is considered to be the final product released for use. Also known as General Availability (GA) release software.

Product Lifecycle – Software Product Support Lifecycle policies provides consistent and predictable guidelines for product support availability when a product releases and throughout that product's life. Understanding this lifecycle is critical to maximize and manage IT investments and strategically plan for a successful IT future.

Proprietary Rights Indemnification – It must indemnify and defend the State of Delaware and the agency signatory against all claims that the software infringes any patent, copyright or other rights of third parties. It also must provide that the Licensor will pay any costs, damages and attorney's fees awarded against the State.

Release Candidate – Software that has the potential to be a final product. This phase is usually closer to complete code but still should not be used in production environments as there is the potential that bugs may still exist.

Software License – The legal agreement that defines the appropriate use and deployment of software.

Supportability – Addresses the concern that there is a patching mechanism to address security vulnerabilities. Also that patching mechanism should include

validation of the source and appropriate indemnification (as described above) as part of that process. Stated or observed duration of vendor support of prior, current, and future software releases should be considered prior to any software procurement.

Validation of the Source – Refers to any downloaded (vs. traditional delivered on media) software and addresses the concern that the distribution is free of malware and/or any backdoor code which may place State systems and/or data at the risk of compromise. It would also provide a trusted mechanism for obtaining the source code for open source distributions. All downloads of software/source code should be obtained from the Vendor's site whenever possible, and downloaded files should be checked against MD5 hash or other file integrity mechanisms. Software should never be downloaded from a peer to peer file sharing network.

III. Development and Revision History

Date	Revision
8/11/2008	Rev 0 – Initial version
4/9/2010	Rev 1 – Added three specific concerns
1/17/2013	Rev 2 – Made changes related to indemnification
12/11/2015	Rev 2 – Added language to address User installed software and Software Maintenance as per IRS findings
2/3/2023	Rev 2 – Removed broken links
11/4/2024	Rev 2 - Removed a reference to the Technology Investment Council

IV. Approval Signature Block

Name & Title: State Chief Information Officer	**Date**